Statutory Instrument 33 of 2008.

[CAP. 2:12

Zimbabwe Electoral Commission (Media Coverage of Elections) Regulations, 2008

Note: *These regulations were made under the now-repealed Zimbabwe Electoral Commission Act [Chapter 2:12] and were saved in force by section 44 of Act No. 3 of 2012.*

ARRANGEMENT OF SECTIONS

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SCHEDULE: Media Coverage Appeal Form.

IT is hereby notified that the Zimbabwe Electoral Commission, in terms of section 19 of the Zimbabwe Electoral Commission Act [*Chapter 2:12*][1], has, with the approval of the Minister, made the following regulations:–

Title

1. These regulations may be cited as the Zimbabwe Electoral Commission (Media Coverage of Elections) Regulations, 2008.

Interpretation

2.(1) In these regulations—

"air time" means the time given by broadcasters to political parties and independent candidates to broadcast their election material;

"election advertisement" means any advertisement promoting a political party or candidate during an election period;

"election broadcast" means any election programme or election advertisement that is aired by a broadcaster;

"election matter' means any election advertisement, election programme or election publication;

[1] The regulations are now deemed to have been made in terms of section 192 of the Electoral Act [*Chapter 2:13*]. See section 44 of the Electoral Amendment Act 2012 (No. 3 of 2012).

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"election programme" means any of the programmes referred to in section 3(2) that are broadcast during an election period;

"election publication" means any publication made by a print publisher in relation to an election;

"equitable", in relation to the coverage accorded to political parties and candidates by broadcasters and print publishers, means fair treatment in news, current affairs and discussion programmes or features, and should not be construed to mean equal treatment;

"prime time" means the period between 1800 hours and 2200 hours every day.

(2) Any word or expression to which a meaning has been assigned in the Act[2], the Broadcasting Services Act [*Chapter 12:06*] and the Access to Information and Protection of Privacy Act [*Chapter 10:27*] shall have the same meaning when used in these regulations.

Election programmes and advertisements to be broadcast

3.(1) Each of the stations of a public broadcaster shall ensure that when broadcasting election programmes or election advertisements—

(a) the station will adhere to the applicable provisions of Part IVA of the Act[3];

(b) the election broadcast is dearly defined as an election broadcast and identified or announced as such in a similar manner both at its introduction and at its conclusion.

(2) A public broadcaster shall carry political parties' or candidates' advertisements in accordance with section 16D of the Act[4].

(3) A public broadcaster shall ensure that election programmes to be broadcast during an election period shall include the following programmes—

(a) programmes to which political parties or candidates are invited to present their election manifestos and policies to the electorate without being interviewed;

(b) programmes in which there are discussions relating to the elections;

(c) programmes in which there are interviews with candidates or the, representatives of political parties relating to the elections;

Allocation of air time on television and radio

4.(1) A public broadcaster shall ensure that contesting political parties or candidates are treated equitably in the allocation of air time for the broadcasting of election matter.

(2) A public broadcasters shall, during an election period, allocate advertising air time on television and radio to a political party or candidate contesting an election upon payment by the party or candidate of the amounts stipulated by the broadcaster for the broadcasting of election advertisements generally.

Election broadcasts

5.(1) A public broadcaster shall transmit an election programme in such a manner that the programme does not follow immediately before or after another election programme.

(2) A public broadcaster shall transmit election programmes during prime time.

(3) No broadcaster shall broadcast any election programme or advertisement that incites violence or advocates hatred that is based on race, ethnicity, sex, gender, religion or political conviction and that constitutes incitement to cause harm.

(4) A public broadcaster shall give the Commission a broadcast schedule for election programmes and recording dates for all pre-recorded election programmes for each station within a

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[2] When these regulations were enacted in 2008, this meant the Zimbabwe Electoral Commission Act. Now it should be construed as meaning the Electoral Act [*Chapter 2:13*].

[3] Now Part XXIB of the Electoral Act [*Chapter 2:13*].

[4] Now section 160H of the Electoral Act [*Chapter 2:13*].

period of seven days after the nomination day or first nomination day, as the case may be, of the election in question, or within such longer period as the Commission may for good cause allow.

(5) No election programme shall be broadcast on a polling day.

(6) Broadcasters shall ensure that every election broadcast meets the quality standards set by the broadcaster.

Election advertisements

6.(1) Each of the stations of a public broadcaster shall allocate four hours of available purchasable time during an election period for election advertisements which shall be distributed equitably to political parties and candidates contesting the election in question, taking into consideration the number of constituencies the being contested by the respective political parties.

(2) A public broadcaster shall transmit an election advertisement in such a manner that the election advertisement does not follow immediately before or after another election advertisement.

(3) A broadcaster's advertising rates for election advertisements shall be seventy *per centum* of the current advertising rates for other classes of advertisement.

(4) Subject to section 16D(2) of the Act[5], a broadcaster shall not edit or alter any advertisement submitted for transmission without the consent of the political party or candidate concerned.

(5) A broadcaster may reject an advertisement submitted for transmission and if it does so it shall provide written reasons for the rejection within twenty-four hours to the concerned political party or candidate.

(6) A broadcaster shall be indemnified against any cost, damage or loss incurred or sustained as a result of any claim arising from any election broadcast

Election publications

7.(1) A print publisher shall not publish any election publication that incites violence or advocates hatred that is based on race, ethnicity, sex, gender, religion or political conviction and that constitutes incitement to cause harm.

(2) A print publisher shall offer the same terms and conditions of publication, without discrimination, to all the political parties and candidates contesting an election during an election period.

(3) A print publisher's advertising rates for election advertisements shall be at the lowest rates offered to persons placing commercial advertisements.

(4) A print publisher may reject an advertisement submitted for publication and if it does so it shall provide written reasons for the rejection within twenty-four hours to the concerned political party or candidate.

(5) A print publisher shall be indemnified against any cost, damage or loss incurred or sustained as a result of any claim arising from any election advertisement.

Conduct of broadcasters, print publishers, presenters and reporters during an election period

8.(1) Broadcasters and print publishers shall ensure that during the election period, news and current affairs programmes or features relating to the election in question are presented in a balanced, fair, complete and accurate manner.

(2) Broadcasters' and print publishers' presenters or reporters who are engaged during an election period in broadcasting programmes or publishing articles that present news and current affairs in connection with the election in question shall not—

(a) express their personal views in such programmes or articles;

(b) wear or exhibit symbols or colours or appear with clothes or insignia associated with any political party or other election contestant;

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[5] Now section 160H(2) of the Electoral Act [*Chapter 2:13*].

(c) accept gifts, favours or special treatment by political parties or other persons interested in the election that compromise their professional integrity.

(4) Journalists accredited under the Access to Information and Protection of Privacy Act [*Chapter 10:27*] to cover an election during an election period shall not do anything whether in the course of their duties or otherwise and whether by way of action, speech attitude or manner, that may compromise their professional integrity.

(5) Every broadcaster and print publisher shall afford political parties and candidates the right of reply where a report aired or published under the editorial responsibility of the broadcaster or print publisher contains inaccurate information or unfair criticism based on a distortion of facts, and such right shall be given within twenty-four hours in a programme or column of similar weight and audience.

Records of political matter broadcast or published

9.(1) Broadcasters and print publishers shall make a written record of election matter broadcast or published no later than twenty- four hours after it is broadcast or published, which record shall contain the following information—

(a) the name and the address of the representative of the political party or candidate responsible for submitting the election matter to the broadcaster or print publisher;

(b) in the case of an election broadcast, the transmission date and time and duration of the broadcast;

(c) in the case of election matter other than an election broadcast, the publication date of the election matter;

(d) any other information which the broadcaster or the print publisher deems necessary.

(2) Broadcasters and print publishers shall retain for at least six months after an election period the record referred to in subsection (1).

Appeals

10.(1) Any political party or candidate contesting an election who is aggrieved by any decision of a broadcaster or print publisher in terms of these regulations may appeal to the Commission, giving the grounds of the appeal within twenty-four hours of being notified of the broadcaster's or print publisher's decision.

(2) An appeal in terms of subsection (1) shall be made in form MC 1 set out in the Schedule.

(3) The Commission may, before deciding an appeal lodged in terms of subsection (1), request the appellant and the broadcaster or print publisher, as the case maybe, to appear before the Commission and make such oral submissions in connection with the appeal as the Commission considers will be of assistance to it in determining the appeal.

(4) The period between the lodging of the appeal in terms of subsection (1) and its determination shall not exceed two days and, if the appeal has not been determined after that period, it shall be deemed to have been determined in favour of the appellant.

(5) The Commission may, if it finds a complaint to be well founded, grant the relief sought by the complainant or such other relief as it thinks fit in the circumstances.

Repeal

11. The Broadcasting Service (Access to Radio and Television During an Election) Regulations, 2005, published in Statutory Instrument 22 of 2005, are repealed.

SCHEDULE (*SECTION 10(2)*)

MEDIA COVERAGE APPEAL FORM

Form MC1

ZIMBABWE ELECTORAL COMMISSION

Mahachi Quantum Building, 1 Nelson Mandela Avenue, Harare; Private Bag 7782, Causeway, Harare

Telephone: (024) 2756252, (024) 2759130, (024) 2774095, (024) 2770340, (024) 2781903[6]

1. Complainant's details

Political Party/Independent Candidate

Name of Political Party/Independent Candidate .....

Ad of Political Party/Independent Candidate .....

Telephone ..... Fax .....

E-mail: .....

Person Representing Political Party/Independent Candidate

Office held in Party .....

First Name(s): .....

Surname: .....

Date of Birth ..... I.D. Number .....

Residential Address. .....

.....

Business Address .....

.....

Telephone ..... Fax .....

E-mail: .....

2. Respondent's Details

Name of Broadcaster/Station/Print Publisher .....

Programme .....

Date of transmission or publication: .....

3. Nature of complaint and relief sought, if any (*Provide details*)

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Date ..... Signature .....

[6] The address and telephone numbers have been updated by Veritas.